

Judgment Sheet.
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT.

Writ Petition No. 10283 of 2025.

Muhammad Athar Hannan & 03 others.

Versus.

Member Board of Revenue, Judicial-IV and 14 others.

J U D G M E N T.

Dates of Hearing. **16.07.2025, 24.07.2025, 24.10.2025,**
24.11.2025 and 04.02.2026.

Petitioner by: M/s Asif Mehmood Cheema and
Shamshad Ahmad Bajwa, Advocates.

Respondent No. 1 to 3 by: Mr. Imran Khan, A.A.G.

Respondent Nos. 4 to 9 & 11 to 14 by: M/s Hamid Iftikhar
Panu & Fozia Bashir
Ahmad Rana, Advocates.

Respondent No. 10 by: Nemo (Died issueless).

Respondent Nos. 13 & 14 by: M/s Junaid Jabbar Khan, Rana
Tariq Masud, and Mian Abdul
Jabbar, Advocates.

KHALID ISHAQ, J:- Through this Constitutional Petition filed under Article 199 of the Constitution of Islamic Republic of Pakistan (the “**Constitution**”), the Petitioners have called into question the order dated 12.12.2024 (“**Impugned Order**”) passed by Respondent No.1/Member (Judicial-IV), Board of Revenue Punjab, Lahore, in Review Petition No. 360 of 2023, while exercising review jurisdiction under Section 8 of the Punjab Board of Revenue Act, 1957 (“**Act, 1957**”).

2. Brief submissions of the learned counsels for the Petitioners revolve around the scope and contours of review jurisdiction under Section 8 of the Act, 1957; learned counsel for the Petitioner submits that the scope of review in terms of Section 8 *ibid* is very limited and does not encompass the kind of exercise, which has been undertaken while passing the Impugned Order; contends that under the garb of review jurisdiction, Member Board of Revenue Punjab, Lahore has re-written the order and re-framed the earlier opinion while reversing the order dated 13.10.2023 (“**Revisional Order under Review**”); adds that the Petitioners filed Revision Petition (RoR No.442 of 2023), under Section 164 of the Punjab Land Revenue Act, 1967 (“**Act, 1967**”), for laying challenge to the order dated 25.10.2022, passed by the learned Addl. Commissioner (Revenue), Gujranwala in favour of the Respondents, which RoR was allowed vide Revisional Order under Review; submits that there was no scope for reviewing the said order by virtue of Impugned Order. In support of their submissions learned counsels for the Petitioners have placed reliance on the judgments reported as “Hayat Muhammad through LRs. v. Muhammad Riaz” (2023 SCMR 2012), “Faqir Muhammad v. Khursheed Bibi and others” (2024 SCMR 107), “Muhammad Safeer and others v. Muhammad Azam and others” (PLD 2024 SC 838), “Abdul Majeed Khan through L.Rs. and others v. Ms. Maheen Begum and others” (2014 SCMR 1524), “Noor Muhammad, Lambardar v. Member (Revenue), Board of Revenue, Punjab, Lahore and others” (2003 SCMR 708), “Muhammad Din and 2 others v. Muhammad Amin and 8 others” (PLD 1994 SC 288), “Mst. Maryam Bibi and 3 others v. Faqir Khan and 4 others” (2011 YLR 880), “Muhammad Aslam v. M. Nazir Ahmad and others” (2012 YLR 1875), “Haji Noorwar Jan v. Senior Member, Board of Revenue, N:W.F.P. Peshawar and 4 others” (PLD 1991 SC 531), “Ahmad Sikander v. Commissioner Inland Revenue, AEOI Zone, Lahore” (2025 SCMR 140) & “The

Government of Balochistan, through Secretary Energy Department, Quetta and another v. Muhammad Yasir” (2025 SCMR 367).

3. On the other hand, learned counsels for Respondent Nos.4 to 9 and 11 to 14, apart from defending the Impugned Order on the touchstone of the contours of review jurisdiction, have also questioned the maintainability of this Constitutional Petition on the ground that since the entire edifice of the petitioners’ case is based on ‘*mutations*’, allegedly recorded in the revenue record by the revenue hierarchy, which revenue record is maintained for the fiscal purposes only, therefore, as per settled law on the subject that a *mutation* does not confer any title and as such, there is no title or right vesting in the Petitioners on the basis of *mutations* hence, the Petitioners are not ‘*aggrieved persons*’ in terms of Article 199 of the Constitution as no rights exist merely on the basis of mutations in issue, therefore, there is no infringement of any ‘*right*’ and hence the Impugned Order cannot be assailed by the Petitioners by way of invoking Constitutional jurisdiction of this Court under Article 199 of the Constitution. In order to substantiate respective submissions, learned counsels for the Respondents have relied upon “Muhammad Iqbal v. S.A.M Khan, Member, Board of Revenue, West Pakistan, Lahore and 3 others” (PLD 1970 Lahore 614), “Mst. Kaniz Fatima and 3 others v. Member (Revenue), Board of Revenue, Punjab, Lahore and 5 others” (PLD 1973 Lahore 495), “Rehmat Noor v. Zulqarnain” (2023 SCMR 1645), “Abdul Majeed and 6 others v. Muhammad Subhan and 2 others” (1999 SCMR 1245), “(Thakur) Nirman Singh and others v. Thakur Lal Budra Partab Narain Singh and others” (A.I.R. 1926 Privy Council 100), “Muhammad and others v. Sardul” (PLD 1965 (W.P.) Lahore 472), “Mst. Aisha Bibi and others v. Muhammad and others” (PLD 1957 (W.P.) Lahore 371), “Lal and others v. Mian Dad and another” (1968 SCMR 842(2)), “Faqir Ali and others v. Sakina Bibi and others” (PLD 2022 Supreme Court

85) & “Khyber Tractors (Pvt.) Ltd through Manager v. Pakistan through Ministry of Finance, Revenue and Economic Affairs, Islamabad” (PLD 2005 SC 842).

4. Learned counsels for Respondent Nos. 13 & 14 have largely adopted the submissions of learned counsel for the Respondent Nos. 4 to 9 and 11 to 14 and have placed further reliance on the judgments reported as “Wali Muhammad Khan and another v. Mst. Amina and others” (2018 SCMR 2080), “Atta Muhammad and others v. Mst. Munir Sultan (Deceased) through her LRs and others” (2021 SCMR 73), “Farhan Aslam and others v. Mst. Nuzba Shaheen and another” (2021 SCMR 179), “Muhammad Rafiq v. Mst. Ghulam Zohra Mai and another” (2023 SCMR 988) & “Zakia Begum and others v. Nasir-ul-Islam Khan and others” (2022 SCMR 2130).

5. Arguments heard. Record perused.

6. Though this Court is conscious that the jurisdiction being sought to be invoked through the case in hand *i.e.* jurisdiction of Judicial Review, does not envisage the determination of facts as this Court is a Court of law, however, considering the inextricably linked factual intricacies *viz* the legal questions raised by both sides, it is imperative to lay and appreciate certain facts, which may be summed up as under:

a) One Mst. Sakina Bibi w/o Muhammad Hussain was owner in possession of land measuring 17-Kanals 01-Marla in Mauza Sambrial District Sialkot (the “**Land**”). Mst. Sakina Bibi had five sons: (*Muhammad Ashraf, Muhammad Afzal, Muhammad Anwar, Muhammad Ajmal and Muhammad Akbar*) and two daughters: (*Mst. Rahat Sultana and Mst. Shabnam Ghous*). One of the sons, namely, Muhammad Akbar died during the lifetime of Mst. Sakina Bibi and was survived by Legal Heirs, the details whereof are neither disputed nor required for the purpose of the issue in hand;

- b) On 10.12.2014, three sons of Mst. Sakina Bibi *i.e.* Muhammad Ashraf, Muhammad Afzal & Muhammad Anwar (who shall hereinafter be referred to as “**Beneficiaries**”) appeared before the Revenue Officer concerned and got recorded family partition mutation No. 25094 (the “**Partition Mutation**”); three days thereafter, *i.e.* on 13.12.2014, a gift mutation No. 25100 (“**Gift Mutation**”) was also purportedly recorded regarding the entire Land in favour of the Beneficiaries, while excluding the other offsprings of Mst. Sakina Bibi *i.e.* Muhammad Ajmal, Muhammad Akbar’s LRs, Mst. Rahat Sultana and Mst. Shabnam Ghous. It is pertinent to point out here that both the aforesaid mutations *i.e.* Partition Mutation and Gift Mutation, were only recorded in the revenue record and were not sanctioned on the respective dates *i.e.* 10.12.2014 and 13.12.2014;
- c) On having notice and knowledge of these disputed mutations, Muhammad Ajmal (son), Mst. Rahat Sultana and Mst. Shabnam Ghous (daughters) of Mst. Sakina Bibi filed an application before the Assistant Commissioner, Sambrial, alleging that the Gift Mutation has been brought about through fraud, misrepresentation and against the lawful consent of Mst. Sakina Bibi as she was subjected to uncalled for persuasions owing to her fragile status and position of being an uneducated lady of 80 years old. This application is available on record and depicts that it was filed on the same day, when purported Gift Mutation was recorded in the revenue record of the Land *i.e.* 13.12.2014;
- d) The Assistant Commissioner concerned sought a report from the field staff, which was prepared and submitted on 15.12.2014. Considering the report of field staff, Assistant Commissioner, Sambrial passed the order

dated 15.12.2014 whereby the previous position, prior to the Partition Mutation and Gift Mutation, was directed to be restored by cancellation of Partition Mutation No. 25094 and Gift Mutation No. 25100. Needless to observe that at this juncture, the impugned Partition Mutation and Gift Mutation were not even sanctioned;

- e) Beneficiaries of the Gift Mutation (three sons of Mst. Sakina Bibi) filed an application for review of the order dated 15.12.2014. In order to proceed with the review application, the Revenue Officer recorded the statement of Mst. Sakina Bibi along-with statements of Beneficiaries, which statement is also on the record and reflects that like the earlier mutations *i.e.* the Partition Mutation and Gift Mutation, this statement was not recorded as required under Section 42(7) of the Act, 1967 since neither it was a common assembly/ '*Jalsa-e-Aam*' nor independent/respectable persons of the locality were present to identify and witness the proceedings. On the basis of this statement, an order dated 31.12.2014 was passed by the Revenue Officer to the effect of re-instatement of Partition Mutation and Gift Mutation, dated 10.12.2014 and 13.12.2014 respectively, however, these mutations were still not sanctioned in terms of provisions contained in Section 42(8) of the Act, 1967;
- f) Undisputed record further reflects that on 02.05.2015 Mst. Sakina Bibi was once again produced before the Assistant Commissioner, Sambrial, where she made a statement that she is owner of the Land and wanted to transfer the Land in the name of all of the legal heirs in accordance with the Shariah & Law, without excluding any heir, however, owing to inadvertent error and misunderstanding, the Land has purportedly been gifted in the names of three sons only, which transaction was brought about against her will and wish, therefore, she

requested for cancellation of the Gift Mutation and instructed for transfer of Land in favour of all of her offspring *i.e.* 04 sons and 02 daughters. The record further transpires that the Assistant Commissioner, Sambrial sought permission of the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala for review of the order dated 31.12.2014, whereby revival of Partition Mutation and Gift Mutation was effected/ordered. Record further depicts that the permission was granted vide order dated 05.06.2015, passed by the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala. It is a matter of record that this order, granting permission for review of the order dated 31.12.2014 was never assailed by the Beneficiaries of the Gift Mutation, instead an application was filed by one of the Beneficiaries (Muhammad Anwar) before the District Collector for transfer of the case from Assistant Commissioner, Sambrial to the District Collector, Sialkot but the transfer application was dismissed by the District Collector, Sialkot *vide* order dated 08.09.2015 in the following terms:

“8. In view of above, the instant petition is rejected with a direction to Assistant Commissioner/Sub-Divisional Collector Tehsil Sambrial to decide application pending before her in accordance with law keeping in view the above observation.”

- g)** The matter remained pending before the Assistant Commissioner/Collector, Sub Division Sambrial till 15.03.2017 when the said Assistant Commissioner decided the matter while observing that since Mst. Sakina Bibi has passed away during the pendency of the matter and respondents (Muhammad Anwar) produced a copy of civil suit, therefore, the following order was passed:

"ہر دو فریقین کو طلب کیا جو معہ کونسل حاضر آئے بحث کونسل فریقین سماعت ہوئی جو درخواست نظر ثانی سکینہ بی بی بذریعہ وارثان محمد اجمل وغیرہ دائر ہوئی جس میں تحریر ہے کہ سکینہ بی بی وفات پابھی ہے۔ اس پر باقاعدہ کارروائی عمل میں لائی گئی ہر دو کونسل فریقین نے تحریری بحث بھی پیش کی نیز کونسل مسؤل علیہم نے نقل دعویٰ عدالت دیوانی پیش کیا کونسل فریقین کی بحث سماعت کرنے اور ریکارڈ ملاحظہ کرنے پر عدالت اس نتیجہ پر پہنچی ہے کہ اصل مثل جو عدالت ہذا میں زیر سماعت تھی وہ مطابق چٹھی نمبری 208 مورخہ 16-06-2016 آمدہ ڈسٹرکٹ کلکٹر صاحب پس و پیش ہو گئی ہے جس میں عدالت ہذا کی تمام کارروائی موجود تھی کونسل مسؤل علیہم نے ایک مصدقہ نقل پیش کی جس کے مطابق اسی اراضی کی بابت دعویٰ عدالت دیوانی میں زیر سماعت ہے جس میں آئندہ پیشی 17-03-28 مقرر ہے اور عدالت دیوانی ہی فریقین کے لئے ایک مناسب فورم ہے۔ ان حالات میں درخواست سائیلہ سکینہ بی بی متوفی بذریعہ وارثان محمد اجمل وغیرہ خارج کی جاتی ہے۔ اور ہر دو کونسل فریقین کو ہدایت کی جاتی ہے کہ وہ اپنی دادرسی کے لئے عدالت دیوانی ہی رجوع کریں۔"

h) The order dated 15.03.2017 passed by the Assistant Commissioner/Collector Sub Division, Sambrial was challenged by the excluded and deprived legal heirs of Mst. Sakina Bibi by filing a revision petition under Section 164 of the Act, 1967 before the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala which Revision was allowed *vide* order dated 10.05.2018 in the following terms:

"8- ملاحظہ ریکارڈ سے پایا گیا ہے کہ اراضی زیر بحث کی اصل مالکہ مسماں سکینہ بی بی بیوہ محمد حسین تھی۔ یہ امر تسلیم شدہ ہے کہ مسماں سکینہ کے چار پسران اور دو دختران ہیں۔ سب سے پہلے مورخہ 10-12-2014 کو انتقال نمبر 25094 بابت خانگی تقسیم اور مورخہ 17-12-2014 کو انتقال نمبر 25100 بابت بہت محمد اشرف۔ محمد افضل۔ محمد انور پسران محمد حسین پٹواری حلقہ نے درج کئے۔ یہ انتقال ابھی تصدیق نہ ہوئے تھے کہ متوفیہ کے دیگر وارثان محمد اجمل پسر اور شبنم غوث۔ راحت سلطانہ دختر محمد حسین نے ان انتقال کو روکنے اور ان کی موجودگی میں بیان سکینہ بی بی قلم بند کرنے کی درخواست دائر کر دی جس پر اسسٹنٹ کمشنر / سب ڈویژنل کلکٹر تحصیل سمر ٹیال نے حکم صادر کیا جس کا ذکر اوپر کیا جا چکا ہے جس کی تعمیل میں یہ انتقال خارج کر دیئے گئے۔ ان انتقال کو بحال کروانے کے لئے مبینہ موہوب علیہم محمد اشرف وغیرہ نے اسسٹنٹ کمشنر / سب ڈویژنل کلکٹر تحصیل سمر ٹیال کے پاس درخواست دائر کی جس پر اسسٹنٹ کمشنر / سب ڈویژنل کلکٹر سمر ٹیال نے یہ انتقال بحال کر دیئے اور ریونیو آفیسر حلقہ کو مطلوبہ کارروائی کرنے کا حکم دیا گیا جس کا ذکر بھی اوپر کر دیا گیا ہے۔ بعد ازاں مسماں سکینہ بی بی بے پھر اسسٹنٹ کمشنر / سب ڈویژنل کلکٹر تحصیل سمر ٹیال کو درخواست دی کہ وہ اپنے تمام وارثان کے حق میں اراضی منتقل کرنا چاہتی ہے جس پر اسسٹنٹ کمشنر / سب ڈویژنل کلکٹر سمر ٹیال نے اپنے پیش رو کے حکم مورخہ 31-12-2014 کی

نظر ثانی کی اجازت طلب کی جس پر نظر ثانی کی اجازت دی گئی جس کا ذکر بھی اوپر آچکا ہے اور مابعد ڈسٹرکٹ کلکٹر سیالکوٹ نے تبدیلی مقدمہ کی درخواست پر مورخہ 08-09-2015 کو حتمی حکم صادر کیا اور کچھ ہدایات بھی جاری کیں جس کا ذکر بھی اوپر آچکا ہے۔ درج بالا عوامل سے یہ واضح ہے کہ مسما سکینہ بی بی کا ذہن اس بابت کلیئر نہ تھا کہ وہ اراضی اپنے تین پسران کو منتقل کرنا چاہتی تھی یا اپنے تمام وارثان کو منتقل کرنا چاہتی تھی۔ ریونیو آفیسر حلقہ واسٹنٹ کمشنر/سب ڈویژنل کلکٹر تحصیل سمریال نے جو کاروائی انتقالات زیر بحث نمبر 25094-25100 کی نسبت کی وہ تمام کی تمام غیر قانونی ہے۔ بادی النظر میں انتقال نمبر 25100 بابت ہبہ زبانی کا اندراج و تصدیق درست قرار نہ دیا جاسکتا ہے بلکہ دھوکہ دہی کا نتیجہ قرار دیا جاتا ہے۔ اسٹنٹ کمشنر/سب ڈویژنل کلکٹر تحصیل سمریال کے جس حکم مورخہ 2014-12-31 کے تحت یہ انتقال درج کر کے تصدیق کیا گیا ہے۔ اس حکم مورخہ 2014-12-31 کی ایڈیشنل کمشنر (ریونیو) گوجرانوالہ ڈویژن گوجرانوالہ (پیش رو عدالت) نے نظر ثانی کی اجازت دے دی ہے۔ اس طرح عملاً انتقال نمبر 25100 خارج ہو چکا ہے جس کی سابقہ صورت بحال ہو چکی ہے۔ محمد انور نے عدالت دیوانی میں ایک دعویٰ بعنوان "محمد انور بنام سکینہ بی بی وغیرہ" دائر کر رکھا ہے جس میں فریقین ہذا فریق مقدمہ ہیں۔ لہذا فریقین ہذا اپنے اپنے موقف کے پیش نظر عدالت دیوانی میں ہی چارہ جوئی کریں جو کہ اراضی زیر بحث کے تنازعہ کے حل کے لئے ریونیو فورم سے بہتر فورم ہے۔

9۔ درج بالا تصریحات کے ساتھ نگرانی ہذا اپنٹائی جاتی ہے۔"

[Emphasis Supplied]

- i) The above clearly reflects that both the Impugned Mutations (the Partition Mutation and Gift Mutation) stood cancelled/nullified and that the Beneficiaries of the Impugned Gift Mutation had approached the Civil Court by filing a suit titled "*Muhammad Anwar v. Sakina Bibi etc.*" suing his own mother Mst. Sakina Bibi, from whom he (Plaintiff/Muhammad Anwar) claimed to have derived the benefit of Gift. The record further reflects that the order dated 10.05.2018 passed by the Addl. Commissioner (Revenue) Gujranwala Division, Gujranwala was assailed by the Beneficiaries of the Gift Mutation by way of filing a revision petition *i.e.* RoR No. 1025 of 2018 before the Board of Revenue Punjab, Lahore. This Revision Petition was dismissed *in limine* by the Member Board of Revenue Punjab, Lahore *vide* order dated 05.07.2018 (the "**First Revisional Order**").

- j) The record also transpires that one of the legal heirs of Mst. Sakina Bibi *i.e.* Muhammad Ajmal sold his respective share of the Land inherited by him on the basis of Inheritance Mutation No. No. 30231 dated 05.07.2018 (the “**Inheritance Mutation**”) to a 3rd party *i.e.* Ch. Muhammad Liaqat Ali (respondent No.14) through mutation Nos. 30234 and 30244 dated 05.07.2018. Similarly, Mst. Nosheen and Ayesha (both daughters of Muhammad Akbar, the predeceased son of Mst. Sakina Bibi) also sold their respective share through mutation No. 30250 in favour of Liaqat Ali (respondent No.14), whereas, Mst. Neelum Shahzadi (daughter of Muhammad Akbar *i.e.* the predeceased son of Mst. Sakina Bibi) also sold her inheritance share through mutation No. 30251 dated 12.07.2018 in favour of Faisal Liaqat (respondent No.13);
- k) On 27.01.2022, after four (4) years of earlier orders, Inheritance Mutation and sales of the respective shares inherited by LR's, Muhammad Athar Hanan and Muhammad Rayan (**Petitioner Nos. 1 & 2**), both of whom are sons of Muhammad Anwar (*One of the Beneficiaries of Gift Mutation, who filed the Suit mentioned above against his mother Mst. Sakina Bibi*) and rest of the beneficiaries of the Gift Mutation, suddenly filed an appeal under Section 161 of the Act, 1967 before the Assistant Commissioner, Sambrial against the order dated 30.06.2018 passed by the Revenue Officer Sambrial, by the dint whereof, Revenue Officer had cancelled Partition Mutation No. 25094 and Gift Mutation No. 25100 *vide* order dated 30.06.2018 and consequently Inheritance Mutation of Mst. Sakina Bibi was sanctioned. Along-with the appeal, the Appellants/Petitioners also filed application for condonation of delay. Said appeal was contested by the present respondents and sought its dismissal on the

question of limitation as well as on merits, however, the Appeal filed by the present petitioners and other Beneficiaries of Gift Mutation was allowed *vide* order dated 26.05.2022 in the terms that order of the Revenue Officer dated 30.06.2018 *viz* cancellation of Mutation Nos. 25094 and 25100 was declared unlawful and consequently, all subsequent mutations were set-aside;

- l) At this juncture, subsequent purchasers of Land *i.e.* Faisal Liaqat and Ch. Liaqat Ali (respondent Nos. 13 & 14 of this petition) filed Revision Petition under Section 164 of the Act, 1967 before the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala against the order dated 26.05.2022 passed by the Assistant Commissioner/ Collector Sub Division, Sambrial. The said Revision was allowed *vide* order dated 25.10.2022 and consequently the order dated 26.05.2022, passed by the Assistant Commissioner, Sambrial, was set aside, directing the parties to approach the Civil Court;
- m) This Revisional Order dated 25.10.2022, passed by the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala was assailed by way of a revision petition filed by the present Petitioners under Section 164 of the Act, 1967 *i.e.* RoR No. 442 of 2023, before the Board of Revenue Punjab, Lahore which Revision Petition was allowed *vide* Revisional Order under Review in the following terms:

“6. I have carefully considered arguments of counsels for the parties and have also perused record of case file along with impugned orders. From perusal of record, it reveals that controversy involved in this case hinges around sanction of gift mutation of Mst. Sakina Bibi and the matter remained pending for adjudication in different courts. This is second round of litigation in the Board of Revenue Punjab Lahore. In the earlier round, the revision petition was adjudicated upon by learned Member (Judicial-VII),

Board of Revenue Punjab Lahore which was decided vide order dated 05.07.2018 with the observation that the matter required recording of evidence therefore the parties were directed to approach civil court. So, the order dated 05.07.2018 was final and valid in the field passed by learned Member (Judicial-VII) Board of Revenue, Punjab whereby he set aside observation of Addl. Commissioner (Rev), Gujranwala Division regarding mutation No. 25094 and 25100 in his order dated 10.05.2018. Hence, any entry contrary to this order in record of rights is not only illegal rather warrants administrative action against the revenue functionaries who accorded sanction for such entry in the revenue record. Foregoing in view, the revision petition is accepted, order passed by Assistant Commissioner, Sambrial dated 25.06.2022 is upheld and impugned order dated 25.10.2022 passed by the Addl. Commissioner (Revenue), Gujranwala Division is set aside. This case was reserved on 12.10.2023 for announcement of order which is being announced today. Parties be informed accordingly. File be consigned to the record room after completion.”

- n) Being aggrieved of this Revisional Order under Review, present respondents filed the Review Petition No. 360/2023 under Section 8 of the Act, 1957, which was allowed *vide* Impugned Order hence, this Constitutional Petition.

7. In view of the above facts, there are two questions which are placed for determination of this Court; **Firstly:**

i. *whether the Impugned Order can be assailed by the present Petitioners by invoking the Constitutional jurisdiction of this Court as the entire edifice of the purported rights of the petitioners and alleged infringement thereof, if any, is premised on Gift Mutation and since mutation does not confer any title, therefore, no right is infringed, thus, whether the Petitioners can be*

treated as ‘aggrieved person’ in terms of Article 199 of the Constitution? Secondly;

ii. whether the Impugned Order can withstand the test of limited sphere and contours of review jurisdiction in terms of the provisions of Section 8 of the Act, 1957?

8. Based on able assistance of the learned counsels for the parties, I was tempted to decide the first question first as this Court, as well as the Supreme Court of Pakistan/Federal Constitutional Court are inundated with the Constitutional Petitions/CPLAs based on the disputes pertaining to and arising from the mutations entered in the revenue record, however, since the answer to this question might have ramifications on many other pending cases, which parties are not represented before this Court, therefore, exercising judicial restraint and considering that the petition in hand can be decided on the basis of answer to the second question framed above, therefore, following the well settled position of law that “*If a case can be decided on other or narrower grounds, the Court will abstain from deciding the constitutional question*” & “*The Court will not decide a larger constitutional question than is necessary for the determination of the case*”¹, I am intentionally not deciding the first question for the time being and will decide the same in some other appropriate case.

9. For answering the Second question viz the contours of review jurisdiction in terms of Section 8 of the Act, 1957, the relevant provision i.e. Sub-section (1) of Section 8 of the Act, 1957 is reproduced below for the sake of convenience:

(1) Any person considering himself aggrieved by a decree passed or order made by the Board and who, from the discovery of new and important matter or evidence which,

¹ *Fozia Mazhar v. Additional District Judge, Jhang and others* (PLD 2024 Supreme Court 771); *Dobbs v. Jackson Women’s Health Org.* (597 U.S. 215 (2022)), *Jurists Foundation through Chairman v. Federal Government through Secretary, Ministry of Defence and others* (PLD 2020 SC 1) *Meera Shafi v. Office of the Governor Punjab & others* (2019 LHC 3402) / (PLD 2020 Lahore 54) & *Lahore Development Authority v. Imrana Tiwana*’ (2015 SCMR 1739).

after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or the order was made , or on account of some mistake or error apparent on the face of the record, [or for any other sufficient reason] desires to obtain a review of the decree passed or order made against him, may apply to the Board for a review of judgment and the Board may, after giving notice to the parties affected thereby and after hearing them, pass such decree or order as the circumstances of the case require.

[Emphasis Supplied]

10. The above wording of the quoted provision reflects that the review jurisdiction conferred under Section 8(1) of the Act, 1957 is akin to the provisions of review contained in Order XLVII, Rule 1 of the CPC but the same is different from the wordings of some other statutory provisions of review. Section 8(1) *ibid*, encompasses three different grounds for filing a review *i.e.* (i): the *discovery of new and important matter or evidence, which was not in knowledge or access of the party which seeks to invoke the remedy of review*, however, the twin preconditions, which are *sine qua non* for availing the review on this score are embodied in the provision *i.e.* the matter or evidence must not only be new but must be important for a just and lawful decision of the case and the party which seek to rely on such important matter or evidence must demonstrate that non presentation or production of such new and important matter or evidence had occurred despite due diligence of the party concerned. In the case in hand, this part of the provision is not attracted as the Review Petitioner did not rely upon discovery of ‘*new and important matter*’, which was not discussed or considered by the Revisional Court while passing the Revisional Order under Review; (ii) the second possible ground of review, as couched in Sub-section 8(1) *ibid* may be: *some mistake or error apparent on the face of the record*; the third, but distinctive feature of the provision in issue is that the Board exercising the jurisdiction of review has been clothed

and conferred with the authority and jurisdiction to pass an order in review if: **(iii)** *the circumstances of the case require*. Considering the facts and circumstances of the case in hand, I am of the opinion that that the touchstones **(ii) & (iii)**, as explicated above, are attracted and applicable in the case in hand. Needless to observe that even otherwise, these two parts are not be treated or invoked disjunctively and separately from each other. The following reasons, when juxtaposed with the facts of the case adumbrated above, leads to an ineluctable conclusion that it was a case of *mistake or error apparent on the face of the record, therefore, the circumstances of the case required passing of the Impugned Order*.

11. While passing the Revisional Order under Review, the learned Member Board of Revenue appreciated and considered only one aspect and part of the First Revisional Order, passed in in RoR No. 1025 of 2018, however, the learned Member, Board of Revenue failed to appreciate the other, but substantial part of the First Revisional Order, which part of the order was not only the *pith and substance* of the matter but was also of the real essence of the said order. At the cost of burdening this judgment with repetition, it is reiterated that the Revision Petition No. 1025 of 2018 was filed by the Petitioner Nos. 1 & 2 and others in their personal capacity as well as in their capacity as LR's of the Beneficiaries of the Gift Mutation. In order to unequivocally demonstrate as to what was the error or mistake apparent on the face of the record in the Revisional Order under Review, which triggered the filing of the review and justified the passing of the Impugned Order, it is imperative to consider as to what were the findings, which were impugned by way of RoR No. 1025 of 2018. These findings, as culled out from the order dated 10.05.2018, passed by the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala are reproduced below:

درج بالا عوامل سے یہ واضح ہے کہ مسماٹ سکینہ بی بی کا ذہن اس بابت کلیئر نہ تھا کہ وہ اراضی اپنے تین پسران کو منتقل کرنا چاہتی تھی یا اپنے تمام وارثان کو منتقل کرنا چاہتی تھی۔ ریونیو آفیسر حلقہ واسٹنٹ کمشنر/سب ڈویژنل کلکٹر تحصیل سمریال نے جو کاروائی انتقالات زیر بحث نمبر 25094-25100 کی نسبت کی وہ تمام کی تمام غیر قانونی ہے۔ بادی النظر میں انتقال نمبر 25100 بابت ہر زبانی کا اندراج و تصدیق درست قرار نہ دیا جاسکتا ہے بلکہ دھوکہ دہی کا نتیجہ قرار دیا جاتا ہے۔ اسٹنٹ کمشنر/سب ڈویژنل کلکٹر تحصیل سمریال کے جس حکم مورخہ 31-12-2014 کے تحت یہ انتقال درج کر کے تصدیق کیا گیا ہے۔ اس حکم مورخہ 31-12-2014 کی ایڈیشنل کمشنر (ریونیو) گوجرانوالہ ڈویژن گوجرانوالہ (پیش رو عدالت) نے نظر ثانی کی اجازت دے دی ہے۔ اس طرح عملاً انتقال نمبر 25100 خارج ہو چکا ہے جس کی سابقہ صورت بحال ہو چکی ہے۔ محمد انور نے عدالت دیوانی میں ایک دعویٰ بعنوان "محمد انور بنام سکینہ بی بی وغیرہ" دائر کر رکھا ہے جس میں فریقین ہذا فریق مقدمہ ہیں۔ لہذا فریقین ہذا اپنے اپنے موقف کے پیش نظر عدالت دیوانی میں ہی چارہ جوئی کریں جو کہ اراضی زیر بحث کے تنازعہ کے حل کے لئے ریونیو فورم سے بہتر فورم ہے۔

[Emphasis Supplied]

These findings were challenged in RoR No. 1025 of 2018, titled “Muhammad Anwar through LRs etc. v. Muhammad Ajmal etc.” The said revision was dismissed in limine in the following terms vide First Revisional Order”:

“4. Preliminary arguments considered and available documents perused. In the concurrent findings of the lower courts, both mutations were declared as having been passed on the basis of fraud and were reviewed. It is observed that lower court’s remarks regarding declaration of the mutations having been passed fraudulently is without jurisdiction as the same was to be declared after recording of evidence, and that too, by the civil court. **To rest of the decision of the lower courts I agree and uphold the same and direct the parties to approach civil court to substantiate their claims in the light of due evidence. The petitioners’ counsel is also in agreement of this disposal.** So this revision petition is accordingly disposed of.”

[Emphasis Supplied]

12. It is evident from the First Revisional Order passed by the Member, Board of Revenue Punjab, Lahore that neither Mutation Nos. 25094 & 25100 (Partition Mutation & Gift

Mutation respectively) were restored nor any other observations were made *viz* the rights of parties. Instead, it was simply observed that observation of the lower court with regard to the allegation of fraud were uncalled for since such a declaration required recording of evidence and that too by the Civil Court. Nonetheless, the Member, Board of Revenue proceeded to observe: **To rest of the decision of the lower courts I agree and uphold the same.** It is fall to be noted that the order impugned before the Board of Revenue i.e. order dated 10.05.2018, passed by the Addl. Commissioner (Revenue), Gujranwala Division, Gujranwala was not to the effect of cancellation of Gift Mutation No. 25100, instead it simply denotes that Gift Mutation No. 25100 has already been reviewed and cancelled. It is further evident from the order dated 10.05.2018 that the predecessor-in-interest of the present Petitioners, namely, Muhammad Anwar approached learned Civil Judge 1st Class, Sialkot and filed suit titled “Muhammad Anwar v. Mst. Sakina Bibi” for permanent injunction against recalling of Gift Mutation No. 25100, which suit was decided by the learned Civil Judge 1st Class, Sialkot *vide* judgment & decree dated 17.12.2018. The suit was decreed to the extent of injunction *viz* possession, however, the same was dismissed to the extent of restraining the Respondents from cancellation of Mutation No. 25100 *vide* judgment & decree dated 17.12.2018. It is also a matter of record that since the Partition Mutation and Gift Mutation were never restored, therefore, owing to the death of Mst. Sakina Bibi during the pending controversy, Mst. Sakina Bibi's Inheritance Mutation was sanctioned in favour of all legal heirs of Mst. Sakina Bibi. Had it been the case that the Gift Mutation was still in filed and was not cancelled/annulled, the Inheritance Mutation of Mst. Sakina Bibi would not have been sanctioned. The purported Gift Mutation was even otherwise without any credence for having been brought about in exclusion of some of the legal heirs, particularly both daughters of Mst. Sakina Bibi and that too in dubious

circumstances is of no effect, unless a declaration in favour of such transaction is issued by Civil Court. Ostensibly, the Impugned Mutation was brought about in complete disregard and violation of mandatory provisions of law *i.e.* Section 42 of the Act, 1967 and unless a declaration to the contrary is sought by the Beneficiaries from the Civil Court by proving the same, not only the factum of gift but also the factum of recording of the Gift Mutation will always remain under question.

13. Section 42(7) of the Act, 1967 requires that “Except in cases of inheritance or where the acquisition of the right is by a registered deed or by or under an order or decree of a Court, the Revenue Officer shall make the order under sub-section (6) in the presence of the person whose right has been acquired, after such person has been identified by two respectable persons, preferably from Village Headman or members of the Union Council concerned whose signatures or thumb-impressions shall be obtained by the Revenue Officer on the register of mutations. It was accordingly incumbent upon the Petitioners to have proved that the mutations in question were sanctioned in accordance with the procedure provided under section 42 of the Act, 1967 and to have produced such an evidence in a suit for declaration as it is well settled that the oral transaction of transfer of immovable property, be it sale, gift/tamleek, surrender or will etc. has to be proved separate from its incorporation/attestation in revenue record by way of sanctioning of the mutation since a mutation cannot by itself be considered a document of title. It is trite, as settled by plethora of Judgments of the Supreme Court that any mutation/transaction of gift, which tends to deprive the female legal heirs from their inheritance share, are not only illegal and unlawful but also against the injunctions of Islam, therefore, any beneficiary of such transaction(s) has to prove the same through unimpeachable evidence.² Thus, as a natural corollary

² “*Fida Hussain through legal heirs v. Murid Sakina*” (2004 SCMR 1043), *Mst. Brikhna v. Faiz Ullah Khan and others* (2020 SCMR 1681), *Muhammad Yaqoob v. Mst. Sardaran Bibi and*

of the foregoing, a civil suit for declaration, if any, had to be filed by the Beneficiaries of the purported Gift Mutation *i.e.* the Petitioners and not by the Respondents. While adverting to a similar situation, the Supreme Court has observed in the case of **Rehmat Noor**³ that: “*There is no cavil with the proposition that a mutation is always sanctioned through summary proceedings and to keep the record update and for collection of revenue such entries are made in the relevant Register under section 42 of the Land Revenue Act, 1967. It has no presumption of correctness prior to its incorporation in the record of rights.*” It is an admitted fact in the case in hand that the entries of purported Gift Mutation were never incorporated in the Register of Record of Rights. In the case of **Abdul Majeed**,⁴ the Supreme Court has held that “*.....a mutation although acted upon in the Revenue Record, would not by its own force be sufficient to prove the genuineness of the transaction to which it purports unless the genuineness of the transaction is proved. There is no cavil with the proposition that these documents being part of public record are admissible in evidence but they by their own force would not prove genuineness and execution of that to which they relate unless the transaction covered by them is substantiated from independent and reliable source.....*”

14. Revisional Court also failed to consider the record to the extent that after having the RoR No. 1025/2018 dismissed *vide* First Revisional Order by the Member Board of Revenue, there was no occasion for the Petitioner Nos. 1 & 2 to approach the Assistant Commissioner, Sambrial in 2022 nor any jurisdiction

others (PLD 2020 S.C. 338), *Fazal Ellahi (deceased) through its Legal Heirs v. Mst. Zainab Bibi* (2019 SCMR 1930), *Ghulam Sarwar (deceased) through L.Rs. and others* (2019 SCMR 567), *Islam ud Din (deceased) through L.Rs. and others v. Mst. Noor Jahan (deceased) through L.Rs. and others* (PLJ 2016 S.C. 616), *Phul Peer Shah v. Hafeez Fatima* (2016 SCMR 1225), *Muhammad Ishaq v. Muhammad Shafiq and 9 others* (2007 SCMR 1773), *Haji Muhammad Anwar v. Muhammad Ahmed and others* (2007 SCMR 1961), *Rehmatullah and others v. Saleh Khan and others* (2007 SCMR 729), *Aurangzeb through L.Rs. and others v. Muhammad Jaffar and another* (2007 SCMR 236), *Mst. Janntan and others v. Mst. Taggi through L.Rs. and others* (PLD 2006 S.C. 322), *Muhammad Akram and another v. Altaf Ahmad* (PLD 2003 S.C. 688), *Muhammad Lehrasab Khan v. Mst. Aqeel un Nisa and 5 other* (2001 SCMR 338), *Muhammad Ihsaq and another v. Mst. Gazala Riaz and 8 others* (1997 SCMR 974) & *Mst. Noor Fatima and another v. Begum Bibi and another* (1990 SCMR 629).

³ “*Rehmat Noor v. Zulqarnain*” (2023 SCMR 1645)

⁴ “*Abdul Majeed and 6 others v. Muhammad Subhan and 2 others*” (1999 SCMR 1245)

or authority was available with the said officer to pass the Order dated 26.05.2022, when the matter had previously been conclusively determined up-to Board of Revenue vide First Revisional Order, wherein the counsel for the Petitioners No. 1 & 2 had conceded before the Board of Revenue that the Gift Mutation stood cancelled and parties had to approach Civil Court. Thus, the Assistant Commissioner Sambrial had to take his hands off the matter and even if there was a confusion, he could have simply referred the matter to the Board of Revenue as it is not only untenable but amounts manifest procedural and legal irregularity by a subordinate authority to start reconsidering the matter when the superior authority in the hierarchy had already decided the same. By failing to appreciate all these elements, the learned Member Board of Revenue committed mistake and error, while passing the Revisional Order under Review, which mistakes and errors are apparent on the face of the record.

15. The judgments relied upon by the learned counsel for the Petitioners are clearly distinguishable and not attracted in the case in hand for their own facts. For completeness, the case of *Abdul Majeed Khan*⁵ is of no benefit to the Petitioners and may instead be destructive for their cause. In this case, a mutation of gift duly sanctioned and recorded in favour of the Respondent Maheen Begum was challenged before the revenue hierarchy by Abdul Majeed Khan on the basis of allegations of fraud, which allegations were leveled after the death of the Donor. Since the revenue hierarchy assumed the jurisdiction of the matter, therefore, the High Court interfered while exercising jurisdiction under Article 199 of the Constitution and held that resort had to be made by way of a challenge before the Civil Court. As a complete contradistinction to the cited precedent, in the case in hand, the Gift Mutation was never lawfully sanctioned, as noted above, whereas, the Inheritance Mutation

⁵ “*Abdul Majeed Khan through LRs and others v. Maheen Begum and others*” (2014 SCMR 1524)

was not only sanctioned but was also unsuccessfully challenged by Muhammad Anwar etc. Further reliance has been placed by the learned counsel for the petitioner on the case of **Hayat Muhammad**⁶ to argue that the Gift having been made once cannot be cancelled and remedy to challenge the Gift was before the Civil Court. Indeed, the Gift once made cannot be cancelled and remedy to challenge a Gift is before the Civil Court but in the case in hand, it is the Petitioners who require a declaration of existence or subsistence of a valid gift as the factum of gift is neither conclusively settled as yet by way of three necessary ingredients *i.e.* Offer by the Donor, acceptance by the Donee(s) and transfer of Possession in favour of the Donee(s)⁷ nor the same was sanctioned and recorded by way of any mutation, which even if recorded in the revenue record, does not confer any right or title in favour of any party but constitutes merely an official record for fiscal purposes on the administrative side. Thus, the same cannot by itself be considered as a document conferring rights or title as it is meant for fiscal purpose only. To prove a transaction, appearing/embodied in a mutation, a strong piece of evidence is required under the Qanun-e-Shahadat, 1984. The Supreme Court of Pakistan has consistently held that mutation proceedings are not judicial in nature.⁸ Since the Petitioners of this case seek to exclude the admitted Legal Heirs from the

⁶ *“Hayat Muhammad through LR’s v. Muhammad Riaz”* (2023 SCMR 2012).

⁷ *“Bilal Hussain Shah and another v. Dilawar Shah”* (PLD 2018 SC 698); *“Khalid Hussain and others v. Nazir Ahmad and others”* (2021 SCMR 1986); *“Government of Khyber Pakhtunkhwa through Chief Secretary Civil Secretariat, Peshawar and others v. Shah Faisal Wahab and others”* (2023 SCMR 1642); *“Mst. Tahira Samina and others v. Javed Saeed Tariq and others”* (2024 SCMR 24); *“Mst. Saadia v. Mst. Gul Bibi”* (2016 SCMR 662); *“Mst. Nagina Begum v. Mst. Tahzib Akhtar and others”* (2009 SCMR 623); *“Khalida Idrees and others v. Anas Farooq Chaudhary and others”* (PLD 2018 LAH 819); *“Mst. Rasheeda Bibi v. Mukhtar Ahmad and others”* (2008 SCMR 1384); *“Islam-ud-Din through L.Rs and others v. Mst. I Noor Jahan through L.Rs and others”* (2016 SCMR 986); *“Mst. Shafqat Parveen v. Muhammad Iftikhar Amjad and others”* (2012 SCMR 1602); *“Rehmat Noor v. Zulqarnain”* (2023 SCMR 1645); *“Syed Ahmad v. Ali Akbar and others”* (2021 SCMR 743)

⁸ *“Mst. Ramzan Bibi v. Ibrahim (deceased) through L.Rs. and others”* (2025 SCMR 955); *“Mst. Jehan Bano and others v. Mehraban Shah and other”* (2024 SCMR 1096); *“Rehmat Noor v. Zulqarnain”* (2023 SCMR 1645); *“Zaffar Afzal and others v. Ashiq Hussain”* (PLD 2023 SC 456); *“Muhammad Yaqoob v. Mst. Sardaran Bibi and others”* (PLD 2020 SC 338); *“Ghulam Sarwar (Deceased) through LR’s and others v. Ghulam Sakina”* (2019 SCMR 567); *“Fazal Elahi (Deceased) through his Legal Heirs v. Mst. Zainab Bi”* (2019 SCMR 1930); *“Peer Bakhsh through LR’s and others v. Mst. Khanzadi and others”* (“2016 SCMR 1417”); *“Muhammad Akram and another v. Altaf Ahmad”* (PLD 2003 SC 688)

right of inheritance, therefore, the Petitioners are required to seek declaration from the Civil Court. Likewise, overwhelming reliance has been placed by the learned counsel for the Petitioners on the case of Muhammad Safeer⁹ to argue the limited scope of review in terms of Section 8 of the Act, 1957. Since the cited precedent directly relates to the contours of the review jurisdiction under Section 8 of the Act, 1957, therefore, some details and facts of the cited precedent are required to be mentioned in this Judgment, which facts would lead to the conclusion that this precedent doesn't help the cause of the Petitioners either. Muhammad Safeer's case *supra* relates to challenge laid before the Supreme Court, directed against an order of the High Court, whereby a Constitutional Petition filed under Article 199 of the Constitution was dismissed without advertng to the facts of the case while observing that the petitioner therein had the remedy of review under Section 8 of the Act, 1957. It was in these set of facts that the Supreme Court proceeded to enunciate the law *viz* the scope and contours of review jurisdiction under Section 8 *ibid* and remanded the matter to High Court. The relevant part of the said judgment is particularly instructive for the proposition in hand *qua* the jurisdictional sphere of the Review jurisdiction under Section 8 *ibid*, therefore, the same is reproduced herein below:

“5. The power of review stems from the statute and, therefore, it is to be exercised by a court or an authority having regard to the conditions and limitations expressly prescribed by the legislature. The scope of review is distinct from that of an appeal. In case of an appeal all questions of fact and law are to be considered but the scope of a review is limited to the conditions and limitations expressly provided under the relevant statute which confers the power. Subsection (1) of section 8 of the Act of 1957 sets out the scope and the grounds for exercising the power of review. The three grounds expressly stated in section 8(1) of the Act of 1957 are:(i) discovery of new and important matter or evidence which, after the exercise of

⁹ Muhammad Safeer and others v. Muhammad Azam and others” (PLD 2024 SC 838)

due diligence, was not within the knowledge or could not be produced by the person seeking review at the time when the decree was passed or the order was made, (ii) some mistake or error apparent on the face of the record and lastly, 'for any other sufficient reason'. The review jurisdiction conferred under section 8 of the Act of 1957 is, therefore, confined and limited to the said three grounds. This Court has held in the case of Muhammad Din² that the expression 'for any other sufficient reason' does not extend to every cause which would make the remedy by way of review available but such cause must be relatable to the circumstances as discovery of new and important matter or some mistake or error apparent on the face of the record. The expression, therefore, is to be read ejusdem generis with the preceding expressions or grounds. Any other interpretation would change the nature of the review contrary to the legislative intent, because the legislature had indeed not intended to provide the remedy of an appeal. The scope of the review jurisdiction under section 8 of the Act of 1957 is, therefore, restricted to the grounds expressly prescribed by the legislature.”

16. The above makes it abundantly clear that the Impugned Order has been passed within the jurisdictional sphere of power of review conferred under Section 8 of the Act, 1957. If part (ii) ‘*some mistake or error apparent on the face of the record*’, and part (iii) ‘*as the circumstances of the case require*’ of Sub-section (1) of Section 8 are read and considered per the interpretation handed by the Supreme Court of Pakistan, since in the context of the case, once the learned Member Board of Revenue had reached to the just and lawful conclusion that while passing the Revisional Order under Review, error of failure to consider the substantial part of the First Revisional Order and the earlier orders *e.g.* order dated 10.05.2018, passed by the Additional Commissioner (Revenue), Gujranwala, were such errors and mistakes which were floating and apparent on the face of the record, the Member Board of Revenue had all the jurisdiction to invoke the third tier of Sub-section (1) of Section 8 *i.e.* to ‘*pass such decree or order as the*

circumstances of the case require'. The facts of the case in hand are that the sole reliance of the Petitioners on a purported Gift Mutation, which mutation is marred by many questions of its validity and authenticity for having been based on the statement of a lady, who was 80 years old, was made to change her statement on multiple occasions, the statement or the so called Gift Mutation amounts to depriving the legal heirs, particularly the female folks and above all, it is still required to be proved by the Beneficiaries that it was brought about in accordance with law. Similarly, the case of Muhammad Din¹⁰, as referred by the learned counsel for the Petitioners is of no precipitable reference for the case in hand as the cited case law authoritatively settles the scope of review under Section 8 *ibid* while observing that: “.....*learned Member, Board of Revenue was not justified allowing the review petition as there was no discovery of new and important matter or evidence which was not available and could not be produced earlier.....*”, whereas, in the case in hand no new evidence was produced for invoking the review jurisdiction and rather it was a case of error and mistakes apparent on the face of the record in the Revisional Order under Review. The next case referred by the learned counsel for the petitioners is the judgment of the Supreme Court in the case of Haji Noorwar Jan¹¹, which precedent is to the effect that as to what is meant by the “error of law apparent on the face of the record” and the scope of Constitutional jurisdiction under Article 199 of the Constitution for interference and correction of the orders passed by the Board of Revenue, if such orders are found to have been passed by committing an error of law. The Supreme Court held that High Court must correct such errors of law, if such an order is impugned before the High Court under Article 199 of the Constitution. There is no cavil to such settled position of law, therefore, there is no relevance of the said judgment for the purpose of the decision of the case in hand. On the same

¹⁰ “Muhammad Din v. Muhammad Amin” (PLD 1994 SC 288)

¹¹ Haji Noorwar Jan v. Senior Member Board of Revenue and 4 others” (PLD 1991 SC 531)

premise, the Judgments in the cases of **Ahmad Sikander**¹² & **Muhammad Yasir**¹³, as relied upon by the Petitioners, are not relevant for the proposition in hand as these cases pertain to the scope of jurisdiction of review in terms of their own facts and not an authority for the facts of the case in hand.

17. Coming to next question of paramount importance that whether the facts and grounds of the case sought to be agitated by the petitioners are such which even call for invocation of remedy of judicial review under Article 199 of the Constitution for setting aside the Impugned Order. While dealing with such like cases, the consistent approach of the Supreme Court leads to an ineluctable consensus that before a person can be permitted to invoke the discretionary power of High Court under Article 199 of the Constitution, it must be shown that the order sought to be set aside had occasioned some injustice to the parties. If it does not work any injustice to any party rather it cures a manifest illegality then the extraordinary jurisdiction of judicial review ought not be allowed to be invoked.¹⁴ Similarly, in the case of **Begum Shamsun Nisa**¹⁵, it was settled that the High Court in exercise of its discretionary jurisdiction is not bound to interfere in all circumstances and it would have been proper exercise of its discretion, if it had not interfered with the order of the Chief Settlement Commissioner, in that case even if it felt that the order of the Chief Settlement Commissioner whereby he rendered the order of the Settlement Commissioner as null and void, was not strictly legal.

18. The constitutional jurisdiction of this Court is meant to right the wrong and cannot be invoked in favour of a party who has brought a case for determination of an alleged right, which right is cloaked in patent illegalities, fraud, misrepresentation or the same is devoid of sound legal backing. On many occasions,

¹² “*Ahmad Sikander v. Commissioner Inland Revenue*” (2025 SCMR 140)

¹³ “*The Government of Balochistan v. Muhammad Yasir*” (2025 SCMR 367)

¹⁴ “*Syed Raunaq Ali etc v. Chief Settlement Commissioner and others*” (PLD 1973 SC 236).

¹⁵ “*Begum Shamsun Nisa v. Said Akbar Abbasi and another*” (PLD 1982 SC 413).

the Apex Court refused to intervene where the grant of relief would amount to retention of ill-gotten gains or would lead to injustice or aiding the injustice¹⁶. In the instant case, there is no ground for invocation of the extraordinary constitutional jurisdiction of judicial review under Article 199 of the Constitution as this would tantamount to advance the cause of the persons, whose sole reliance is based on a disputed Gift Mutation and by the dint whereof, they seek to exclude the other legal heirs, including their sisters, from their right of inheritance. Unless proved otherwise by the beneficiaries through a regular civil suit for declaration in their favour to that extent, the Gift Mutation is neither here nor there for the cause of the Petitioners. The object of exercising the extraordinary jurisdiction of the Judicial review by the superior Court(s) is to foster justice, preserve rights and to right a wrong; keeping this object in view, while exercising judicial review, a Constitutional Court may proceed in equity to set aside or annul a void judgment or enjoin enforcement by refusing to intervene in the circumstances of the case before it¹⁷ but such power cannot be invoked for petitioner(s) who seek to deprive their siblings of their lawful right of inheritance. Last but not the least, the reliance may also be placed upon the case reported as “Lal and others v. Mian Dad and another” (1968 SCMR 842(2)), wherein, while enunciating the law on the subject, which is squarely applicable in the case in hand, Cornelius, C.J. observed that:

“A writ petition moved by the petitioners for quashment of an order of the Revenue authorities made some 32 years earlier, by which a certain mutation was sanctioned, having been dismissed by the High Court, leave to appeal is sought by this petition. Following the mutation, a civil suit was attempted by

¹⁶ See “Gul Muhammad v. Addl. Settlement Commissioner” (1985SCMR 491); “Nazim Ali etc. v. Mustafa Ali etc.” (1981 SCMR 231); “Wali Muhammad and others v. Sheikh Muhammad and others” (PLD 1974 SC 106); “Meraj Din v. Director, Health Services” (1969 SCMR 4); “Tufail Muhammad v. Muhammad Ziaullah Khan” (PLD1965 SC 269); “Azmat Ali v. Chief Settlement and Rehabilitation Commissioner” (PLD1964 SC 260).

¹⁷ “Mst. Mobin Fatima v. Muhammad Amin and 2 others” (PLD 2006 SC 214), “Secretary to the Govt. of the Punjab v. Ghulam Nabi and 3 others” (PLD 2001 SC 415).

the petitioners which failed. As a question of title is involved, which can only be determined by a civil suit, the matter would appear to be clear concluded. Entries in revenue records are not in the nature of title-deeds, and have value only as evidence in support of title. No advantage is to be gained by seeking correction of such entries, through the writ jurisdiction, after the question of title has been fully examined and determined in a title suit, and indeed, the writ jurisdiction is not intended for such a purpose.”

19. In view of the above, there is no substance in this petition and the same is hereby **dismissed**. Resultantly, the Impugned Order dated 12.12.2024 is upheld and maintained.

(KHALID ISHAQ)
JUDGE.

Announced in the open Court on **20.02.2026**.

(KHALID ISHAQ)
JUDGE.

APPROVED FOR REPORTING.

(KHALID ISHAQ)
JUDGE.

**Ajmal Rana.*